



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 25, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202200430 (Incident Date: January 23, 2022) regarding Police Officer Anthony Torres, Tax No. 936087 (DADS No. 2023-28286)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted.

Police Officer Torres observed an individual acting suspiciously in the immediate vicinity of the 81st Precinct. The individual repeatedly peered into the interior of unmarked police vehicles as he stood between police vehicles in such a way as to obscure his actions from the scrutiny of uniformed members of the service. Additionally, the same individual stood directly in front of the main lobby doors of the 81st Precinct and used his cellphone to record inside of the 81st Precinct. After observing this suspicious behavior, Police Officer Torres approached the individual and inquired about the individual's reasons for acting in such a way as to arouse the officer's suspicion.

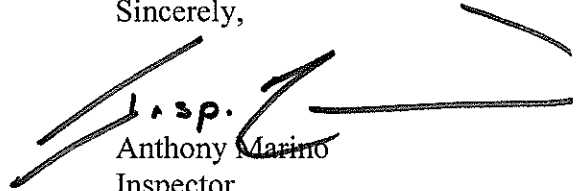
Police Officer Torres never directed the individual to turn off his cellphone or to stop recording. In fact, Police Officer Torres' inquiry was not aimed to stop the individual's right to record as the questioned individual in fact never ceased to use his cellphone to record in front and inside of the 81st Precinct.

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Therefore, based on the foregoing, Police Officer Torres will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-21 (When a Member of the Service Encounters an Individual Observing, Photographing, and/or Recording Police Activity).

Sincerely,

A handwritten signature in black ink, appearing to read "A. Marino", with a large, sweeping flourish extending to the right.

Anthony Marino
Inspector
Commanding Officer
Police Commissioner's Office